

BURGER, C. J., dissenting

457 U. S.

v. *Fitzgerald*, ante, p. 731, we disassociate ourselves from any implication in the Court's opinion in the present case that *Nixon v. Fitzgerald* was correctly decided.

JUSTICE REHNQUIST, concurring.

At such time as a majority of the Court is willing to re-examine our holding in *Butz v. Economou*, 438 U. S. 478 (1978), I shall join in that undertaking with alacrity. But until that time comes, I agree that the Court's opinion in this case properly disposes of the issues presented, and I therefore join it.

CHIEF JUSTICE BURGER, dissenting.

The Court today decides in *Nixon v. Fitzgerald*, ante, p. 731, what has been taken for granted for 190 years, that it is implicit in the Constitution that a President of the United States has absolute immunity from civil suits arising out of official acts as Chief Executive. I agree fully that absolute immunity for official acts of the President is, like executive privilege, "fundamental to the operation of Government and inextricably rooted in the separation of powers under the Constitution." *United States v. Nixon*, 418 U. S. 683, 708 (1974).¹

In this case the Court decides that senior aides of the President do not have derivative immunity from the President. I am at a loss, however, to reconcile this conclusion with our holding in *Gravel v. United States*, 408 U. S. 606 (1972). The Court reads *Butz v. Economou*, 438 U. S. 478 (1978), as resolving that question; I do not. *Butz* is clearly distinguishable.²

¹ As I noted in *Nixon v. Fitzgerald*, Presidential immunity for official acts while in office has never been seriously questioned until very recently. See ante, at 758, n. 1 (BURGER, C. J., concurring).

² If indeed there is an irreconcilable conflict between *Gravel* and *Butz*,